UNITED STATES BANKRUPTCY COURT
DISTRICT OF SOUTH DAKOTA

In re:	)	Bankr. No. 00-00000
	)	Chapter 13
	)	
EXAMPLE DEBTOR	)	
SSN xxx-xx-0000	)	
aka EXAMPLE TRADE NAME	)	
	)	
Debtor.	)	
	)	

MOTION FOR RELIEF FROM THE AUTOMATIC STAY AND MEMORANDUM IN SUPPORT

Example Bank, N.A. moves the Court for for relief from the automatic stay as to the collateral described below under 11 U.S.C. § 362(d)(1) and Fed. R. Bankr. P. 4001(a) and 9014.

MEMORANDUM

I. Facts

The debtor filed a voluntary petition under Chapter 13 on March 1, 2000. Movant holds a promissory note secured by a 2015 model-year vehicle (the "Collateral").

The debtor's plan proposes to pay the Collateral's value over the life of the plan. The debtor has made no payment on the note since the petition date.

II. Argument

Under 11 U.S.C. § 362(d)(1), the Court shall grant relief from the stay for cause, including lack of adequate protection of an interest in property.

1. Movant's interest in the Collateral is not adequately protected, because the Collateral depreciates each month the debtor keeps it.
2. The debtor has not offered any payment that would protect Movant's interest.

III. Conclusion

Movant requests that the Court grant relief from the automatic stay as to the Collateral and waive the fourteen-day stay under Fed. R. Bankr. P. 4001(a)(3).

DATED January 1, 2001.

/s/ Example Counsel
Example Counsel
Example Law Office
100 Example Street
Sioux Falls, SD 57101
(605) 000-0000
counsel@example.invalid
Attorneys for Movant

CERTIFICATE OF SERVICE

I certify that on January 1, 2001, I electronically filed the foregoing with the Clerk of Court using the CM/ECF system, which will send notification of the filing to the parties who receive electronic service, and that I served the foregoing by first-class mail on the debtor and the debtor's attorney at the addresses of record.

/s/ Example Counsel
Example Counsel
Example Law Office